Docket No. FISCR 18-01

In the

UNITED STATES FOREIGN INTELLIGENCE SURVEILLANCE COURT OF REVIEW

IN RE: CERTIFICATION OF QUESTIONS OF LAW TO THE FOREIGN INTELLIGENCE SURVEILLANCE COURT OF REVIEW

Upon Certification for Review by the United States Foreign Intelligence Surveillance Court

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BRIEF OF AMICUS CURIAE

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STATEMENT REGARDING ORAL ARGUMENT

Amicus curiae respectfully requests oral argument in this matter. As the En Banc Court recognized, this is a "novel legal claim." *In re Opinions & Orders of this Court Addressing Bulk Collection of Data Under the Foreign Intelligence Surveillance Act*, No. Misc. 13-08, at *1 (FISA Ct. Nov. 9, 2017) (en banc) (App. C 33) [hereinafter En Banc Op.]. It is also a case of enormous national importance. It goes to the heart of the rule of law, as well as the common law and First Amendment right of public access to judicial opinions. In addition, it raises significant separation of powers concerns. Neither the Presiding Judge nor the En Banc Court, moreover, had the benefit of a hearing. Amicus curiae believes that oral argument would provide substantial assistance to the Court.

QUESTION PRESENTED

Whether the American Civil Liberties Union, the American Civil Liberties Union of the Nation's Capital, and the Media Freedom and Information Access Clinic (collectively "the Movants") have "standing to assert" a "First Amendment right of public access to [Foreign Intelligence Surveillance Court] judicial opinions." *Order*, *In re Certification of Questions of Law to the Foreign Intelligence Surveillance Court of Review*, No. 18-01 (FISA Ct. Rev. Jan. 9, 2018) (App. C 31)

TABLE OF CONTENTS

Page

STATEMENT REGARDING ORAL ARGUMENT ii

QUESTION PRESENTED iii

IDENTITY AND INTEREST OF AMICUS CURIAE vi

INTRODUCTION 1

SUMMARY OF THE ARGUMENT 1

ARGUMENT 3

I. Movants seek access to judicial opinions that have the force of law 3

II. Failure to recognize Movant's right of access would undermine rule of law. 3

III. Failure to find standing would enable executive branch malfeasance and override separation of powers 4

CONCLUSION 5

CERTIFICATE OF COMPLIANCE 6

CERTIFICATE OF SERVICE 7

TABLE OF AUTHORITIES

Cases: **Page(s)**

CIA v. Sims,
471 U.S. 159 (1985).....4

Dep't of the Navy v. Eagan,
484 U.S. 518 (1988).....4

Globe Newspaper Co. v. Superior Court,
457 U.S. 596 (1982).....1

Press-Enterprise Co. v. Superior Court,
464 U.S. 501 (1984).....1

Richmond Newspapers, Inc. v. Virginia,
448 U.S. 555 (1980).....1

Constitutional Provisions:

U.S. Const. art. II, § 1.....4

U.S. Const. art. III, § 1.....3

Statutes:

50 U.S.C. § 1803.....vi, 3

Other Authorities:

Exec. Order No. 13526, 75 Fed. Reg. 707 (Dec. 29, 2009).....4

IDENTITY AND INTEREST OF AMICUS CURIAE

Laura K. Donohue is the Agnes N. Williams Research Professor of Law at Georgetown University Law Center, Director of the Center on National Security and the Law, Director of the Center on Privacy and Technology, and Senior Scholar at the Center for the Constitution. She holds her Ph.D. in History from the University of Cambridge, England, her J.D. (with Distinction) from Stanford Law School, and her A.B. (with Honors) in Philosophy from Dartmouth College. On November 25, 2015, the Foreign Intelligence Surveillance Court designated her as eligible to serve as an amicus curiae pursuant to 50 U.S.C. §1803(i)(1). On January 9, 2018, consistent with 50 U.S.C. §1803(i)(2)(A), the Foreign Intelligence Surveillance Court of Review appointed her as amicus curiae in the matter before the Court.

INTRODUCTION

The En Banc Court got it right: Movants have asserted a sufficient injury-in-fact for standing. *En Banc Op.* at *18. Movants have the right to be heard regarding their constitutional right of access to the Court's opinions. The question is not the extent of the underlying right, but whether it is cognizable—i.e., "capable of being known or recognized," Black's Law Dictionary (10th ed. 2014), cited and quoted in *Id.* at *9.

Courts have repeatedly assumed and expressly recognized a First Amendment right of access to judicial records, which establishes a cognizable interest. *See, e.g.*, *Press-Enterprise Co. v. Superior Court* (*Press-Enterprise I*), 464 U.S. 501, 505-10 (1984); *Globe Newspaper Co. v. Superior Court*, 457 U.S. 596, 603-11 (1982); *Richmond Newspapers, Inc. v. Virginia*, 448 U.S. 555, 580 (1980). *See also Id.* at *10-14.[1] It is precisely the type of interest that "deserve[s] protection against injury." *Id.* at *10 (internal quotations omitted); *see* discussion, *infra*.

SUMMARY OF THE ARGUMENT

Movants are seeking access to judicial opinions that carry the force of law. Reliance on procedural secrecy as a reason to deny public access is misplaced. The

[1] The "injury is 'concrete,' and 'actual,' because the opinions are…not available." *En Banc Op.* at *8. It is also sufficiently particularized. *Id.*

Foreign Intelligence Surveillance Court ("FISC") issues rulings on complex matters of law that impact citizens' rights and reveal the extent to which the executive acts legally. The Court and the government look to FISC opinions as precedent. A robust body of law is evolving, with at least sixty opinions now in the public domain. Movants are not seeking access to classified procedures; they are seeking access to four opinions with constitutional and statutory analysis that impact the rights of millions of Americans and provide insight into how the executive is wielding its power.

Should the Court fail to find standing, it would undermine rule of law. The executive could use secret legal interpretations that the People would not knowingly countenance. It could break the law, without the electorate's knowledge. Separation of powers would be endangered. It does not matter that the opinions have been partially released; nor is it of any moment whether the Court may eventually reject a claim to particular, classified facts. In light of the important and well-established interest at stake, Movants have the right to argue a First Amendment right of access.

ARGUMENT

I. MOVANTS SEEK ACCESS TO JUDICIAL OPINIONS THAT HAVE THE FORCE OF LAW.

The Constitution provides for the judicial power of the United States to be vested "in such inferior courts as the Congress may from time to time ordain and establish." U.S. Const. art. III, § 1. In 1978 the Foreign Intelligence Surveillance Act established FISC. 50 U.S.C. §1803(a), (b) (West 2015). Every court that has considered the issue has determined that FISC is an Article III court.

II. FAILURE TO RECOGNIZE MOVANT'S RIGHT OF ACCESS WOULD UNDERMINE RULE OF LAW.

In 1989 Justice Scalia noted, "In a judicial system such as ours, in which judges are bound not only by the text of code or Constitution, but also by the prior decisions of superior courts…courts have the capacity to 'make' law." Antonin Scalia, *The Rule of Law is the Law of Rules*, 56 U. Chi. L. Rev. 1175, 1175-81 (1989). The four opinions being sought constitute law.

For millennia, access to the law has been the hallmark of rule of law. As developed in the writing of Aristotle, Cicero and St. Augustine, *lex iniusta lex non est*. Thomas Aquinas, *Summa Theologiae*, I-II, Q. 96, Art. 4 (Fathers of the Eng. Dominican Province trans., 1947). To be morally binding, law must be promulgated. *Id.* Early liberal, democratic theorists adapted the concept of natural law to political obedience. Where the government ceases to protect individuals in

their lives, liberties, and estates, and each person, in their own conscience, satisfied that the conditions are met, then individuals have not just the right but the duty to rebel. John Locke, *Second Treatise of Government* (Richard Cox ed. 1982) (1690). Deciding whether to obey requires knowing how the government wields its power, which acts as the most important constraint on government. As Jeremy Bentham explained,

> Without publicity, all other checks are insufficient: in comparison of publicity, all other checks are of small account. Recordation, appeal, whatever other institutions might present themselves in the character of checks, would be found to operate rather as cloaks than checks; as cloaks in reality, as checks only in appearance. 1 Jeremy Bentham, *Rationale of Judicial Evidence* 524 (London, Hunt and Clar 1827).

III. FAILURE TO FIND STANDING WOULD ENABLE EXECUTIVE BRANCH MALFEASANCE AND OVERRIDE SEPARATION OF POWERS.

The government asserts the authority, acknowledged by Court, "to classify and control access to information bearing on national security." *Dep't of the Navy v. Eagan*, 484 U.S. 518, 527 (1988), quoted and cited in U.S. Resp. to Movant's En Banc Opening Br., at *5; *accord CIA v. Sims*, 471 U.S. 159, 170 (1985). It finds root in the vesting and commander-in-chief clauses. U.S. Const. art. II, § 1(1); *Id.* § 2(1); Exec. Order 13526, 75 Fed. Reg. 707 (Dec. 29, 2009). In national security, certain factual information must remain protected. But the government then makes a light-year leap to say that this authority gives it the power to prevent the Court

from publishing its opinions on matters of law. Such brazen ipse dixit carries enormous risk.

CONCLUSION

Movants have the right to make their case to the Court about the scope of their First Amendment right of access to judicial opinions. They have a legally-cognizable interest in access to the law, recognized by common law and the First Amendment. Rule of law requires access to the law. To hold otherwise would open the door to bad behavior, undermine judicial legitimacy, and harm separation of powers.

Respectfully submitted,

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February 23, 2018

CERTIFICATE OF COMPLIANCE

Pursuant to FISC Ct. Rev. R. P. 15(d)(1)-(2), the undersigned certifies that this brief complies with the content requirements of FISC Ct. Rev. R. P. 14(a)(2)-(8) and (10), with the exceptions in FISC Ct. Rev. R. P. 15(d)(1)(A)-(C), and with the type-volume limit of Fed. R. App. P. 32(a)(7)(B) (FISC Ct. Rev. R. P. 15(d)(2)). Excluding the parts of the brief exempted by Fed. R. App. P. 32(f):

[X] this brief contains 1,170 words.

The undersigned relied upon the word count of the word-processing system used to prepare this brief, as Fed. R. App. P. 32(g)(1) permits.

[X] this brief complies with the typeface requirements of Fed. R. App. P. 32(a)(5) and the type-style requirements of Fed. R. App. P. 32(a)(6): it has been prepared in a proportionally spaced typeface using Typst 0.15.0 in 14-point Times New Roman roman type.

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Professor Laura K. Donohue
Amicus Curiae
Dated: February 23, 2018

CERTIFICATE OF SERVICE

I hereby certify that on February 23, 2018, I provided one original and five copies of the amicus brief to the Clerk of Court, Foreign Intelligence Surveillance Court of Review, who has informed me that the Litigation Security Group will deliver a copy to the government, and sent one copy by Federal Express to each of the following.

Media Freedom Information Access Clinic, Abrams Institute, Yale Law School, P.O. Box 208215, New Haven, CT 06520

Knight First Amendment Institute at Columbia University, 535 West 116th Street, 314 Low Library, New York, NY 10027

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